

9:00 AM

Line 5

24-CIV-00269 HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

“Doe” Defendants’ Motion to Strike Doe Amendments and First Amended Complaint (C.C.P. § 435, 436 & C.C. § 1714.10)

TENTATIVE RULING:

The motion filed by Robert Polychron, erroneously also sued as Robert Polychron Business, Aragon Management, LLC, Carol DePond, Claassen Law Corp., Susan V. Chamberlain, and John Claassen (“Doe Defendants”) to strike each Doe Amendment that was filed against them on or around July 9, 2025 in the First Amended Complaint (“FAC”) is **DENIED** without prejudice. Because the motion is denied the Court **DECLINES** to rule on defendant’s concurrently filed request for judicial notice.

Here, Plaintiff, who is proceeding in propria persona, has not filed a consent to electronic service in this action, as noted in his limited and special opposition. The proof of service in the Court’s file indicates service upon Plaintiff was made only by electronic service. (See Cal. Rules of Court rule 2.251(c)(3)(B) [self-represented parties are to be served by non-electronic methods unless they affirmatively consent].) Accordingly, the motion is **DENIED** without prejudice.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 6

24-CLJ-03780 LVNV FUNDING, LLC VS. JUAN LUIS AGUILERA

LVNV FUNDING, LLC
JUAN LUIS AGUILERA

STELLA PARK

Plaintiff's Motion to Transfer Case to Appropriate Court [C.C.P. § 397]

TENTATIVE RULING:

Plaintiff's Motion to Transfer Case to Appropriate Court (C.C.P. § 397), is GRANTED.

The Court reviewed Plaintiff's Notice of Motion and Motion to Transfer Case to Appropriate Court, Memorandum of Points and Authorities in Support, and Declaration of Counsel in Support all filed on July 2, 2026. There is no opposition.

The Court also reviewed the July 26, 2024 Declaration of Non-Service filed by Plaintiff's process server, indicating the named defendant is no longer residing at a last known address in Redwood City, CA. The Declaration of Counsel and Exhibit 1 is a confirmation from the Post Office that Defendant has moved and is receiving mail at an address located in Los Angeles County.

Code of Civil Procedure Section 395(a) provides, generally, that the court in the county where the defendant resides at the time the action is filed is the proper court for trial of the action. Plaintiff has now demonstrated that this is not the proper county for this matter to be heard, and that Los Angeles County is the proper county.

Accordingly, the motion is GRANTED. As the motion is unopposed, the Court will utilize the proposed Order that was submitted with the motion.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order.
